

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Connors	Team: Squad #12	CCRB Case #: 201803991	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/20/2018 3:15 AM	Location of Incident: Cornaga Avenue and Mott Avenue	18 Mo. SOL 11/20/2019	Precinct: 101		
Date/Time CV Reported Sun, 05/20/2018 4:08 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 05/20/2018 4:08 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christopher Ghee	16192	944591	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jeffrey Evans	11207	956629	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christopher Ghee	Abuse: Police Officer Christopher Ghee threatened § 87(2)(b) with the use of force.	A . Unsubstantiated
B . POM Christopher Ghee	Abuse: Police Officer Christopher Ghee threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . POM Christopher Ghee	Discourtesy: Police Officer Christopher Ghee acted discourteously toward § 87(2)(b)	C . Unsubstantiated

Case Summary

On May 20, 2018, § 87(2)(b) filed this complaint online with the CCRB.

On May 20, 2018, at approximately 3:15 a.m., § 87(2)(b) and her sister, § 87(2)(b) were driving east-bound along Cornaga Avenue in Queens. § 87(2)(b) was stopped for a moving violation intersection of Cornaga Avenue and Mott Avenue by a marked police vehicle. Inside of this vehicle were PO Christopher Ghee and PO Jeffrey Evans of the 101st Precinct. PO Ghee informed § 87(2)(b) of the above-mentioned infraction, and requested her license and registration. § 87(2)(b) initially refused to provide PO Ghee any documentation and requested to know why she had been pulled over. PO Ghee allegedly replied, “I can have you dragged out and hauled to jail” (**Allegation A and B – Abuse of Authority, unsubstantiated**). § 87(2)(b) then provided her identification and insurance paperwork and the officers returned to the vehicle.

Approximately 25 minutes later, PO Ghee returned to § 87(2)(b)'s driver's side door and issued her four summonses. During this interaction, PO Ghee allegedly threw the summonses at § 87(2)(b) which landed on her lap (**Allegation C – Discourtesy, unsubstantiated**).

§ 87(2)(b) was issued four B-Summonses for turning right at a red light, failing to signal lane change, indistinctive license plate, and obstructed view. § 87(2)(b) was neither summonsed or arrested (Board Review 01).

There is no known video footage for this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Christopher Ghee threatened § 87(2)(b) with the use of force.

Allegation B – Abuse of Authority: Police Officer Christopher Ghee threatened to arrest

§ 87(2)(b)

§ 87(2)(b)'s vehicle, a red 2013 Chrysler SUV, was stopped by PO Ghee. After the initial car stop, § 87(2)(b) asked PO Ghee why she had been stopped. When PO Ghee asked for her license and registration, § 87(2)(b) acknowledged she initially refused to provide her identification. After refusing to provide her identification, PO Ghee allegedly replied, “I can have you dragged out and hauled to jail” (Encl. Board Review 01). Attempts were made to obtain a statement from § 87(2)(b). However, the investigation was unable to obtain testimony from her (Board Review 02).

During his CCRB interview, PO Ghee denied threatening § 87(2)(b) with the use of force or arrest. PO Ghee acknowledged that while requesting § 87(2)(b)'s identification, he stated to her, “Don’t make a big thing about this, it’s just a traffic stop. I need to be able to identify you. If I can’t I.D. you and you’re refusing me your stuff, you’re going to end up having to come back to the precinct with me so I can identify you, and issue you the summonses” (Board Review 03). PO Evans testified that he did not overhear any threat of force or arrest made toward § 87(2)(b) (Board Review 04).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

Allegation C – Discourtesy: Police Officer Christopher Ghee acted discourteously toward

§ 87(2)(b)

When PO Ghee returned to § 87(2)(b)'s vehicle after preparing the summonses, § 87(2)(b) alleged PO Ghee threw the summonses at her which landed on her lap (Encl. Board Review 01).

PO Ghee testified that he had handed § 87(2)(b) the summonses, which she took in her hand. After issuing the summonses, PO Ghee stated he observed § 87(2)(b) throw the summonses from her driver's side window as she drove away (Encl. Board Review 02). PO Ghee did not issue any additional summons to § 87(2)(b) for littering. PO Evans denied observing PO Ghee throw any summonses at § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 04)
- PO Ghee has been a member-of-service for 11 years and has been a subject in ten CCRB complaints and 20 allegations. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) opted to have this complaint investigated.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On October 3, 2018, a request was sent to the New York City Comptroller's Office in regard to any notice of claim filed for this incident. It will be added to the case file upon receipt (Board Review 07).
- § 87(2)(a) 18 USC § 2721 (a)

Squad No.: 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date